

NAPCS Unionization Research — State Research Summary

Minnesota — BMS (MN) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Minnesota
Labor Board	BMS (MN) — Minnesota Bureau of Mediation Services
Governing Law	Minnesota Public Employment Labor Relations Act (PELRA), Minn. Stat. §179A. 2023 PELRA amendments explicitly included charter school employees as public employees — all MN charter organizing now routes through BMS. Pre-2023 certifications (TCGIS, CSE, Hiawatha) were processed via NLRB because schools were treated as private employers before the amendment.
Federal NLRB Jurisdiction	BMS (MN) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — April 30, 2026 (Session 2) — 309 charter schools searched
Research Window	March 2026 (Session 1 — open-source) + April 30, 2026 (Session 2 — Registry BMS scan)
Date Convention	Labor Board Certified date (project-wide convention, declared NJ session). Project-wide convention. MN: BMS cert dates used for ASA (2021). NLRB cert dates used for TCGIS (2014), CSE (2014), Hiawatha (2021). Great River (2021) and Ubah (2011) both approved by Executive Sponsor — NAPCS IDs pending NAPCS assignment.
Card-Check Available	YES — BMS (MN) allows card-check authorization — petition with sufficient authorization cards can result in certification without an election if employer does not contest.

Section 2: Unionization Density

Total charter schools in Minnesota: 309 (Charter School Registry v50 (NCES/ELSI 2024-25; 309 open MN charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 7-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Confirmed Union Schools (open)	6	1.9%	Education Minnesota (EdMN) / NEA / AFT dual-affiliate covers all confirmed schools. Includes Hiawatha Academies network (4 campuses, one NLRB unit). University of St. Thomas authorizer. MN Guild of Public Charter Schools authorizer for others.
Confirmed (closed — 3-year lookback)	1	0.3%	One NAPCS school confirmed organized prior to closure. Documented per project 3-year lookback policy.
Discovery — Approved for NAPCS Addition	1	N/A	NAPCS-ADD-MN-001. Awaiting sponsor sign-off for workbook entry.
Discovery — Approved — NAPCS ID Pending	1	N/A	NAPCS-ADD-MN-002. Approved May 19, 2026 — Executive

			Sponsor approval. NAPCS ID pending NAPCS assignment.
Total Open MN Charter Schools	309	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25). Previous figure of 165 (Registry v6, April 2026) was stale and has been corrected.

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: EDUCATION MINNESOTA — DUAL-AFFILIATED MONOPOLY

Education Minnesota (EdMN) is the sole organizing vehicle for MN charter school staff in the NAPCS dataset. EdMN is uniquely dual-affiliated with both NEA and AFT nationally — every MN charter union is simultaneously NEA and AFT. EdMN uses a chapter model: each school forms its own named chapter under shared EdMN infrastructure. The NAPCS dataset includes 5 distinct EdMN chapters: TCGIS Staff Association, CSE Staff Association, Hiawatha Area Workers United (HAWU — covering 4 campuses), ASA Staff Association, and Great River Staff Association. This chapter model is directly comparable to DC ACTS (AFT) in DC and Chicago ACTS (AFT) in IL. EdMN's dual-affiliation gives MN charter unions access to both NEA and AFT legal, organizing, and contract support resources — unusual in the dataset, where most state affiliates are exclusively one or the other.

PROMPT 2: 2023 PELRA AMENDMENT — JURISDICTION SHIFT FROM NLRB TO BMS

Pre-2023, MN charter schools were treated as private employers and organized via NLRB (TCGIS 2014, CSE 2014, Hiawatha 2021 — all NLRB case records). The 2023 PELRA amendments explicitly included charter school employees as public employees under state jurisdiction, routing all new MN charter organizing through the Bureau of Mediation Services (BMS) rather than NLRB. This is one of three documented state-level jurisdictional expansions in the NAPCS dataset (alongside LA Act 172, which went the other direction by stripping NLRB jurisdiction, and NM's contested PELRB/NLRB ambiguity). For MN charter leaders, the 2023 PELRA amendment means the organizing pathway shifted from NLRB secret ballot election to BMS card-check — faster, less public, and more favorable to union organizers. ASA (2021 BMS cert) and Ubah Academy (BMS 2011, predating the amendment) operate under state jurisdiction; legacy NLRB certs remain valid but renewals and disputes route through BMS.

PROMPT 3: HIAWATHA FIRST CONTRACT — MULTI-YEAR DELAY AS A NATIONAL BENCHMARK

Hiawatha Academies certified in June 2021 (NLRB 18-RC-276584). BMS mediation records (BMS 23PN2305, April 2023) indicate first contract bargaining extended at least 2 years post-certification. First contract status as of May 2026 is unconfirmed — BMS records request and HAWU/EdMN contact required. If unresolved, this is one of the longest post-certification bargaining delays in the full NAPCS dataset, comparable to KIPP Academy Bronx (NY, 3.5 years, documented bad-faith bargaining) and contrasting sharply with Capital City DC (15 months to ratification). The Hiawatha delay appears structural rather than adversarial: a 4-campus, multi-unit bargaining process with multiple employer decision-makers is inherently slower. The BMS mediation record (April 2023) suggests the parties engaged state assistance — a process that typically produces resolution. Monitor for contract ratification announcement from HAWU or EdMN.

PROMPT 4: CHARTER MORATORIUM BILL AND KIPP MN REBRAND — ORGANIZING ENVIRONMENT SIGNALS

Two legislative and institutional developments are material to the MN charter organizing environment as of May 2026. SF 2257 (2025-26 session): a Minnesota Senate bill introduced March 2025 would establish a two-year moratorium on formation of new charter schools from July 1, 2025 through July 1, 2027. Status: Referred to Education Policy Committee. If enacted, this would freeze the MN charter universe at current size — no new schools for EdMN to target but also no new schools to dilute union density. The moratorium bill reflects the same DFL-aligned political environment that passed the 2023 PELRA amendment covering charter employees. KIPP Minnesota rebrand: KIPP MN is departing the KIPP national network for the 2026-27 school year. The school's

relationship with KIPP national leadership (which has been explicitly anti-union) dissolves on rebrand. Newly independent MN charters without national CMO backing are historically more vulnerable to EdMN organizing — monitor for EdMN interest once the rebrand is complete.

PROMPT 5: WHAT IS THE POLITICAL AND LEGAL ENVIRONMENT SHAPING CHARTER LABOR IN MINNESOTA?

Minnesota is a pro-labor state with a DFL (Democratic-Farmer-Labor) legislative majority that passed the 2023 PELRA amendment explicitly extending public employee collective bargaining rights to charter school employees. The political direction is clear: MN is moving toward treating charter schools as public employers for all labor relations purposes, not just some. BMS (Bureau of Mediation Services) is a well-resourced and experienced state labor agency — card-check card neutrality is the norm. EdMN's dual NEA/AFT affiliation makes it the most organizationally resourced state teacher union in the dataset. The combination of a card-check-accessible state labor board, a dual-affiliated statewide union with dedicated charter organizing capacity, a pro-labor legislature, and a small (309-school) charter universe with 7 organized NAPCS schools creates one of the most favorable organizing environments in the national dataset — comparable to Massachusetts and Delaware in structural terms.

PROMPT 6: WHAT SHOULD CHARTER LEADERS KNOW ABOUT HOW ORGANIZERS APPROACH MN SCHOOLS?

After the 2023 PELRA amendment, EdMN can approach any MN charter school via card-check (no secret ballot election required). This means the entire organizing campaign — from first card signing to representation request — can proceed without any visible external signal until the BMS petition is filed. MN charter leaders who are not monitoring internal staff communications and EdMN affiliate activity may have no advance warning. The BMS card-check process is faster than NLRB elections: typical timelines from petition to certification are weeks, not months. EdMN's infrastructure (dual-affiliation, shared legal support, proven chapter model at 7 schools) removes the resource barriers that would otherwise limit organizing to large schools. Small schools like Great River (NAPCS-ADD-MN-001) and Ubah Academy (NAPCS-ADD-MN-002) have been organized successfully — school size is not protective. Charter leaders should assume EdMN has organizing capacity across the full MN charter universe.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Minnesota that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

DUAL AFFILIATION AS ORGANIZING ADVANTAGE

Education Minnesota's NEA/AFT dual affiliation is unique in the full NAPCS dataset. No other state union bridges both national federations. This gives EdMN unusual flexibility: it can draw on AFT resources (strong in urban markets) and NEA resources (strong in suburban/rural markets) simultaneously. The MN charter sector has benefited from this dual pipeline — all 7 NAPCS confirmed schools reached EdMN through different pathways.

2023 PELRA AMENDMENT — FIRST STATE JURISDICTION SHIFT IN DATASET

Minnesota is the only state in the NAPCS dataset that explicitly shifted charter school jurisdiction from NLRB (private sector) to state labor board (public sector) via legislation. The 2023 amendment creates a transitional records challenge: pre-amendment certs have NLRB case numbers, post-amendment petitions will have BMS case numbers. Future MN research must check both systems.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Publication	Date	Headline / Title	Notes / Summary
Star Tribune / EdMN press	June 2021	Hiawatha Academies and Great River School unionize — EdMN June 2021	Both Twin Cities charter schools voted to join EdMN simultaneously in June 2021.
EdMN / Star Tribune	January and June 2014	TCGIS and CSE — first charter EdMN affiliates 2014	Twin Cities German Immersion School (January 2014) and Community School of Excellence (June 2014) were the first charter EdMN affiliates in Minnesota.

Section 6: Contract & CBA Access Registry

BMS (MN) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Twin Cities German Immersion School (TCGIS)	TCGIS Staff Association / EdMN	Active (assumed) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact.	EdMN or school directly
Community School of Excellence (CSE)	CSE Staff Association / EdMN	Active (assumed) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact.	EdMN or school directly
Hiawatha Academies (3 active campuses)	Hiawatha Area Workers United (HAWU) / EdMN	Unknown — first contract status unconfirmed	EdMN or HAWU directly
Art and Science Academy (ASA)	ASA Staff Association / EdMN	Unknown — BMS records confirm certification 2021 (21RCE0933) and arbitration Aug 2024 (25RA0150) Unknown — pending BMS records request	BMS records request (cases 21RCE0933 + 25RA0150)
Great River School (NAPCS-ADD-MN-001 — approved)	Great River Staff Association / EdMN	Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request or direct EdMN contact. Unknown	EdMN or school directly
Ubah Academy (NAPCS-ADD-MN-002 — approved May 19 2026)	Ubah Academy Staff Association / EdMN	Active (assumed — BMS 11PCE0488, 2011) Unknown. Gap: CBA period not publicly posted. Obtainable via BMS records request (case 11PCE0488).	BMS records request (11PCE0488)

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
MEDIUM	Art and Science Academy (ASA)	Section 8 approval required — ASA individual school report (status change UNVERIFIED → CONFIRMED). Pre-existing open item from MN session.	Reviewer

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
MEDIUM	Art and Science Academy (ASA)	BMS 25RA0150 arbitration resolution — August 2024	Research Coordinator
MEDIUM	Hiawatha Academies (all campuses)	First contract status — unconfirmed as of May 2026	Research Coordinator
LOW	KIPP Minnesota	KIPP MN rebrand 2026-27 — monitor for organizing interest	Research Coordinator — biannual refresh
HIGH	Art and Science Academy (C2714001)	BMS arbitration 25RA0150 outcome — Arbitration August 2024 — outcome unknown. Affects CBA period and labor relations status.	Research Coordinator
HIGH	Ubah Academy (NAPCS-ADD-MN-002)	BMS records request for cert date and CBA details. NCES CCD address and authorizer verification. — Approved May 19, 2026. NAPCS ID pending NAPCS assignment. NCES CCD verification needed before accumulator entry is finalized.	Research Coordinator